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BERKELEY EYES ELECTION CHANGES - CHARTER AMENDMENTS ADD INSTANT RUNOFF VOTING, LOWER PLURALITY FOR SOME RACES, CHARGE FILING FEE

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Berkeley voters will consider three charter amendments that would change the way city elections work. One measure is expected to win easily, one has opposition but is still favored to win, and one is so controversial, its approval is very much in doubt.

The controversial amendment is Measure I, which would commit Berkeley to an instant runoff voting system.

The system would allow voters to name their second, third and subsequent choices for mayor, council and auditor, in addition to their first choice. If no candidate receives a plurality (40 percent or 45 percent, depending on whether another measure passes), the top two finishers would go to an instant runoff. Second-choice votes (and, if necessary, subsequent choices) of the losing candidates would be added to their tallies until someone gains a plurality.

Proponents say this would not only save money by avoiding a separate runoff election, it's more democratic.

"You get to vote for your idealistic choice first and your practical choice second," said Councilman Kriss Worthington. "If we'd had instant runoff when we were voting for president in 2000, we'd have President Gore today, because the Nader voters would have named Gore as their second choice."

Opponents say any savings would be offset by the startup costs of installing the system, and that instant runoff is actually less democratic than the current system.

"Let me remind you of another election, in 1860," said Councilman Gordon Wozniak. "Abraham Lincoln's support was far less widespread than his main opponent, Stephen A. Douglas's. If they had instant runoff back then, the history books would be talking about President Douglas rather than President Lincoln."

Printing separate ballots and counting them separately for Berkeley and the rest of Alameda County will be expensive, and paying for it is not written into Measure I so it authorizes the city to install instant runoff whenever it becomes feasible.

Opponents say tinkering with the current system risks running afoul of the law of unintended consequences.

"Think what it would have been like if we'd had instant runoff in the recent recall election," says Wozniak. "It would have taken hours to fill out the ballot. Our present system may have its faults, but it has one overwhelming virtue: It's simple. It was designed by geniuses to be run by idiots."

Far less controversial is Measure J, which would charge candidates for mayor, city council, city auditor, rent board and school board a $150 filing fee to run. In lieu of paying the fee, they could qualify by submitting signatures from up to 150 registered Berkeley voters, each signature reducing the fee by $1.

Proponents, including Mayor Tom Bates and Assemblywoman Loni Hancock, say a fee would discourage frivolous candidates, who file for office but don't campaign, costing the city more than $1,400 apiece just for the price of printing their photos and ballot statements in the voter information pamphlet.

Opponents, including the Council of Neighborhood Associations, call it "an unnecessary response to a non-existing

problem." They say it would discourage political outsiders and people on low incomes from running for office.

Least controversial of all is Measure H, which would lower the plurality required for election as mayor, auditor and council member from 45 percent to 40 percent. It also changes the date of any runoff election from four weeks after the general election to the first Tuesday after the first Monday the following February.

With support from Mayor Tom Bates and the entire City Council, and no visible opposition, Measure H is expected to pass handily.

MEASURE H

Charter Amendment -- Runoff Elections

WHAT IT WOULD DO: Lowers the threshold for election to certain citywide offices and changes the date of runoff elections. It would reduce the plurality required for election as mayor, auditor, and council member from 45 percent to 40 percent. It also changes the date of any runoff election from four weeks after the general election to the first Tuesday after the first Monday the following February.

VOTES TO PASS: Majority

SUPPORTERS: Mayor Tom Bates and the entire City Council, Rent Board chairman Maxwell Anderson, Peralta College trustee Darry Moore, and SEIU Berkeley Chapter 535 librarian Jane Scantlebury.

SUPPORTERS SAY: It would save the city money by avoiding or delaying runoffs.

OPPONENTS: None.

MEASURE I

Charter Amendment -- Instant Runoff Voting

WHAT IT WOULD DO: Authorizes the City Council to adopt an instant runoff election system some time in the future, when it becomes technically feasible. It would enable voters to list their second, third, and subsequent choices for mayor, council member and auditor, in addition to their first choice. If no candidate receives the necessary plurality, the top two finishers would go to an instant runoff, with the second choice votes -- and, if necessary, subsequent choices -- of the losing candidates added to their tallies until a winner is chosen.

VOTES TO PASS: Majority

SUPPORTERS: The League of Women Voters, Mayor Tom Bates, Assemblywoman Loni Hancock, Councilwoman Miriam Hawley, Peralta College trustee Darryl Moore, former ASUC vice president Anuradha Joshi, League of Conservation Voters board member Max Anderson, and Helen Burke of the Sierra Club.

SUPPORTERS SAY: It's a chance to vote for your first choice and also have a fall-back candidate.

OPPONENTS: Vice Mayor Maudelle Shirek, council members Betty Olds and Gordon Wozniak, Transportation Commission chairman Dean Metzger, Police Review Commission chairman William White, former ASUC President Jesse Gabriel, Panoramic Hill Association president Janice Thomas, and Environmental Advisory commission chairwoman Sara MacKusick.

OPPONENTS SAY: It's a dangerous leap in the dark with unforseeable results.

MEASURE J

Charter Amendment -- Filing Fees/Signatures-in-lieu

WHAT IT WOULD DO: It would charge candidates for mayor, city council, rent board commissioner, and school board $150 to help offset the cost of elections. In lieu of this fee, candidates could also qualify by submitting signatures from up to 150 registered Berkeley voters, each signature reducing the fee by $1. These 150 signatures are in addition to the 20 signatures required by the state elections code to nominate a candidate.

VOTES TO PASS: Majority (or two-thirds, or 55 percent)

SUPPORTERS: Mayor Tom Bates, Assemblywoman Loni Hancock, Zoning Adjustments Board chairwoman Laurie Capitelli, Council member Gordon Wozniak, and Board of Education president John Selawsky.

SUPPORTERS SAY: It would keep frivolous candidates off the ballot.

OPPONENTS: The Council of Neighborhood Associations, Council member Kriss Worthington, Berkeley Historical Society treasurer Stephanie Manning, and Peace and Justice commissioner Elliot Cohen.

OPPONENTS SAY: It would discourage low-income candidates, as well.

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